

Produit : Electronic / Measuring devices

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CANADA

Product's definition

Category

In which category the product is classified ?

"Consumer Products" under the Canada Consumer Product Safety Act

"Energy-using products" under the Energy Efficiency Act (and provincial regulations)

"Electrical Equipment" under the Canada Electric Code

If the product contains batteries (and comes with batteries), these batteries might be considered "dangerous goods" subject to the Transportation of Dangerous Goods Act

a type of radio equipment covered by the Radiocommunications Act

- Radio Apparatus
- Interference Causing Equipment
- Radio-sensitive equipment

Ontario

"household" means manufactured or sold primarily for use in a dwelling;

"information or status display" means a device, including a clock, providing visual alphanumeric or graphical information or information about the status of the equipment;

"mains power" means an alternating current electric power source that is in a building and is less than or equal to a nominal 240-volt single-phase supply;

"off mode" means,

(a) in respect of televisions, the mode in which the product, while connected to mains power, cannot produce either sound or picture or provide any mechanical function and cannot be switched into another mode with a remote control unit, a timer or another internal or external signal,

(b) in respect of video products, the mode in which the product, while connected to mains power, cannot provide any mechanical function and cannot be switched into another mode with a remote control unit, a timer or another internal or external signal, and

(c) in respect of compact audio products, the mode in which the product, while connected to mains power, cannot produce sound or provide any mechanical function and cannot be switched into another mode except by means of a manual switch on the product;

“standby mode” means,

(a) in respect of televisions, the mode in which the product, while connected to mains power, cannot produce either sound or picture or provide any mechanical function, but can be switched into another mode with a remote control unit, an internal signal or an internal timer,

(b) in respect of video products, the mode in which the product, while connected to mains power, cannot produce either video or audio output signals or provide any mechanical function, but can be switched into another mode with a remote control unit, an internal signal or an internal timer, and

(c) in respect of compact audio products, the mode in which the product, while connected to mains power, cannot produce sound or provide any mechanical function, but can be switched into another mode with a remote control unit, an internal signal or an internal timer.

Quebec

"cellular telephone" and "household appliance" under the Consumer Protection Act

Regulations Cited in this Card:

Canada Consumer Product Safety Act (S.C. 2010, c. 21), <https://laws-lois.justice.gc.ca/eng/acts/c-1.68/>

Energy Efficiency Act (S.C. 1992, c. 36), <https://laws-lois.justice.gc.ca/eng/acts/e-6.4/>

- Energy Efficiency Regulations, 2016 (SOR/2016-311), <https://laws-lois.justice.gc.ca/eng/regulations/SOR-2016-311/index.html>

Transportation of Dangerous Goods Act, 1992, <https://laws-lois.justice.gc.ca/PDF/T-19.01.pdf>

- Transportation of Dangerous Goods Regulations, SOR/2001-286, <https://laws-lois.justice.gc.ca/eng/regulations/sor-2001-286/>

CSA Standard C22.1 - Canadian Electrical Code, part I

Amending O. Reg. 509/18 (Energy and Water Efficiency - Appliances and Products): <https://www.ontario.ca/laws/regulation/180509>

- Consumer Protection Act, https://www.publicationsduquebec.gouv.qc.ca/fileadmin/Fichiers_client/lois_et_reglements/LoisAnnuelles/en/2023/2023C21A.PDF, (relevant amendment will come in force on 2026-10-05) as amended by An Act to protect consumers from planned obsolescence and to promote the durability, repairability and maintenance of goods, https://www.publicationsduquebec.gouv.qc.ca/fileadmin/Fichiers_client/lois_et_reglements/LoisAnnuelles/en/2023/2023C21A.PDF

Definition

What is the exact definition of the product ?

And if it exists, what is the interpretation of the authorities regarding it ?

Consumer Product

"consumer product" means a product, including its components, parts or accessories, that may reasonably be expected to be obtained by an individual to be used for non-commercial purposes, including for domestic, recreational and sports purposes, and includes its packaging.

Radio equipment

Radio apparatus, defined as "a device or combination of devices intended for, or capable of being used for, radiocommunication";

Interference-causing equipment, defined as "any device, machinery or equipment, other than radio apparatus, that causes or is capable of causing interference to radiocommunication"; or

Radio-sensitive equipment, defined as "any device, machinery or equipment, other than radio apparatus, the use or functioning of which is or can be adversely affected by radiocommunication emissions".

Electrical Equipment

Electrical equipment is defined as "any apparatus, appliance, device, fitting, fixture, luminaire, machinery, material, or thing used in or for, or capable of being used in or for, the generation, transformation, transmission, distribution, supply, or utilization of electric power or energy and, without restricting the generality of the foregoing, includes any assemblage or combination of materials or things that is used, or is capable of being used or adapted, to serve or perform any particular purpose or function when connected to an electrical installation, notwithstanding that any of such materials or things may be mechanical, metallic, or non-electric in origin".

Energy Using products

Means products that are prescribed by the Energy Efficiency Regulations. This includes 'compact audio products' under Division 9 of the Energy Efficiency Regulations.

A 'compact audio product' is defined as "an amplifier and terrestrial tuner encased in a single housing, with attached or separable speakers — including one that can produce sound from another media — that uses mains power as at least one means of power"

Sub Categories Referred To:

A. If the product comes with batteries, see 'Electronic/Measuring Devices - Batteries' subcategory

B. For regulations for energy-using products and electrical products, that are also subject to the CCPSA, see 'Electronic/Measuring Devices - Chargers' subcategory.

C. If product qualifies as radio equipment under the Radiocommunications Act, see to 'Electronic/Measuring Devices - Radio Equipment' subcategory.

Comments

Comments

Depending on the category or categories into which the MP3 players fall, they will be subject to one or more sets of requirements. First, there are requirements applicable to all Consumer products in Canada (referred to as "Consumer products"). Next, there are requirements applicable to all electrical equipment (referred to as "electrical equipment"). Next, there are requirements applicable to items subject to the Radiocommunication Regulations (referred to as "radio or interference-causing equipment"). Finally, there are requirements applicable to items subject to the Energy Efficiency Regulations (referred to here as "Items subject to the Energy Efficiency Regulations").

MP3 players will therefore be subject only to the requirements applicable to the category or categories into which they fall. For the requirements applicable to each of these categories of items, please refer to the "Electronic/Measuring Devices – Chargers" subcategory.

With regards to products subject to the Energy Efficiency Regulations at the provincial level, see legislation cited in “Electronic/Measuring Devices – Chargers” subcategory.

* Please note, however, that more information regarding the nature, composition, etc. of each specific product would be necessary in order to make a determination as to which category the product falls under and which regulatory regimes apply to the product. Please note that additional regulatory and/or permit requirements may also apply depending on the product's composition, nature, etc.

Labelling

Language

In which language must the information on the product or on the packaging be indicated? If English is sufficient please indicate NA.

Mandatory labelling on product

What are the mandatory labelling on the product ?

Mandatory labelling on packaging

What are the mandatory labelling on the packaging ?

Mandatory labelling on the instructions manual

What are the mandatory labelling on the instructions manual (if one is required) ?
In which format, do we have to deliver the instruction manual to our customers ?

Nil.

Warnings - General ones

Are general warnings required ? If yes, which ones ?

Warnings - Specific ones

Are specific warnings required ? If yes which ones ?

Nil.

Target Age

Is there any target age applicable? If so, does it have to be indicated and in which form?

Nil.

Sanctions / Fines

What are the sanctions / fines in case of non conformity ?

Comments

Comments

Nil.

Environment

Recycling - Eco taxes

Which regulations concerning ecodesign and recycling apply to this product? Are there any ecotaxes applicable to this category of product?

Please refer to the “Electronic/measuring devices – Chargers” section of My Conformity Box for the applicable requirements.

Labelling

What are the mandatory labellings to put on the product or on the packaging regarding the environmental rules ?

Technical rules / Standards

General safety requirements

What are the general safety requirements ? Does a risk assessment have to be conducted ? If yes, does it concern specific risk ?

Mandatory or voluntary standards

Are there some mandatory or voluntary standards applicable ? If yes, which ones ?

Please indicate the reference of the applicable standards

Compact Audio Products

A compact audio product complies with the energy efficiency standard if it meets that standard when tested in accordance with testing procedures established by CSA C62301-11.

British Columbia, Ontario and Quebec are the provinces that set out requirements for compact audio products.

In Québec, the Consumer Protection Act, allows the government to establish technical and manufacturing standards for goods including standards for ensuring interoperability between goods and chargers.

Additional Regulations Cited:

- Energy Efficiency Regulations, 2016 (SOR/2016-311), <https://laws-lois.justice.gc.ca/eng/regulations/SOR-2016-311/index.html>
- NRCAN Guidance on Compact Audio Products, <https://www.nrcan.gc.ca/energy-efficiency/energy-efficiency-regulations/guide-canadas-energy-efficiency-regulations/compact-audio-products/6905>
- British Columbia, Ontario and Québec are the provinces that set out requirements for compact audio products.
- For Québec, Consumer Protection Act, https://www.publicationsduquebec.gouv.qc.ca/fileadmin/Fichiers_client/lois_et_reglements/LoisAnnuelles/en/2023/2023C21A.PDF, (relevant amendment will come in force on 2026-10-05) as amended by An Act to protect consumers from planned obsolescence and to promote the durability, repairability and maintenance of goods, https://www.publicationsduquebec.gouv.qc.ca/fileadmin/Fichiers_client/lois_et_reglements/LoisAnnuelles/en/2023/2023C21A.PDF

Physical and mechanicals properties

What are the physical and mechanicals properties required ?

The Energy Efficiency Regulations set out requirements for compact audio products, primarily regarding their 'off' and 'standby' modes.

Additional Regulations Cited:

Energy Efficiency Regulations, 2016 (SOR/2016-311), Division 9, <https://laws-lois.justice.gc.ca/eng/regulations/SOR-2016-311/index.html>

Electrical aspects

What are requirements regarding electrical aspects ?

Inflammability

Are there any specific requirements to ensure inflammability?

Hygiene

What are the rules regarding hygiene ?

Nil.

Radioactivity

What are the rules regarding radioactivity ?

Radiofrequency (2G,3G,4G,5G, Bluetooth, Ant+, GPS, Wifi...)

What are the rules regarding the radiofrequency?

Products making noise

What are the requirements regarding products making noise ?

MP3 Players cannot make noise in 'off' or 'standby' mode

Additional Regulations Cited:

Energy Efficiency Regulations, 2016 (SOR/2016-311), Division 9, <https://laws-lois.justice.gc.ca/eng/regulations/SOR-2016-311/index.html>

Chemicals substances

What are the requirements regarding chemicals substances ? Which ones are forbidden ? Limited ? Do we have to clearly indicate all substances that are in the product, or is the indication of major substances enough?"

Packaging requirements

Can you please indicate if there are some requirements regarding the packaging of our products (mainly they are in paper, carton, plastic, textile) ? If yes, please explain them.

Laboratory

In which laboratory can we perform the testing of the product according to the standard?

Sanctions / Fines

What are the sanctions / fines in case of non conformity ?

Comments

Comments

Nil.

Certifications / Registrations

Certifications or registrations

Are there some certifications or registrations applicable to the product ?

Laboratory

In case of mandatory certification/ registration that we must follow please precise the name and address of any laboratories where we can conduct them

Comments

Comments

Nil.

Conformity documents

Documents

What are the conformity documents ? Can you please list them ?

Format

Does it exist a specific format for the conformity documents ? If yes, can you please provide us an example in english ?

Nil.

Comments

Comments

Nil.

Importation rules

General rules

What are the general rules in order to import the product ?

Documents

What are the required documents ?

An energy efficiency report must be filed with NRCan prior to first import

Energy efficiency report for compact audio products

The energy efficiency report requirements for compact audio products are:

- name of product
- brand name
- model number
- manufacturer
- name of the certification body or province whose verification mark will be on the product or its package
- whether a mathematical model as defined in the Regulations was used to generate any of the information provided below
- type
- if it has standby mode, its power consumption in that mode, expressed in watts, as applicable, with the information display active
- with the information display inactive

without the information display

- period, expressed in minutes, that begins when standby mode is enabled and ends when the measurement of power consumption in that mode is completed
- if it has off mode, its power consumption, expressed in watts, in off mode

Additional Regulations Cited:

Guide for Compact Audio Products from NRCAN: <https://www.nrcan.gc.ca/energy-efficiency/energy-efficiency-regulations/guide-canadas-energy-efficiency-regulations/compact-audio-products/6905>

Time period

In which time period may we obtain the right to import ?

Administration

What is the administration in charge of importations ? Name and address ?

The CBSA facilitates the importation of compact audio products, on behalf of NRCAN.

Comments

Comments

Inspection of the product

Inspection method

Does it exist an inspection procedure applicable to the product ? If yes, which administration is in charge of ? Can you please describe the procedure ?

Commercialization rules

Notification / Declaration

What are the general rules in order to commercialize a product ?
Is there a notification / declaration to do ?

Nil.

Documents

What are the required documents ?

Nil.

Delay

What is the delay to obtain the right to commercialize ?

Nil.

Display in store

Is there some specific rules on the way to display the product in store ?

Display on internet

Is there some specific mentions to display the product on internet ?

Information to consumers

Do some specific information to have be given to consumers when the product is placed on the market ?

Comments

Comments

Under the Consumer Protection Act, sales or long-term leases of cellular telephones, laptop computers, and electronic pads carry with them a warranty of good working order (in force on 2026-10-05)

Administration

What is the administration in charge of commercialization ? Name and address ?

Documents